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Case Number: 26PSCV00003 Hearing Date: August 20, 2026 Dept: 6

CASE

NAME: Rinat

Baranes v. General Motors LLC

Plaintiff's

Motion for Attorney Fees, Costs and Expenses

TENTATIVE

RULING

The Court GRANTS Plaintiff's Motion for Attorney Fees, Costs and Expenses in the amount of \$13,514.59, comprised of \$12,885.00 in attorney fees and \$629.59 in costs.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a Song-Beverly action. On January 2, 2026, plaintiff Rinat Baranes (Plaintiff) filed this action against defendant General Motors LLC (Defendant) and Does 1 to 100, alleging causes of action for breach of implied warranty, breach of express warranty, violation of the Song Beverly [sic] Consumer Warranty Act, and violation of California Civil Code section 1793.2(b).

On July 24, 2026, Plaintiff moved for attorney fees, costs and expenses. On August 7, 2026, Defendant opposed the Motion. On August 10, 2026, Plaintiff replied to Defendant's Opposition.

LEGAL

STANDARD

“The following items are allowable

as costs under Section 1032:... (10) Attorney's fees, when authorized by any of the following: (A) Contract. (B) Statute. (C) Law.” (Code Civ. Proc., § 1033.5, subd. (a)(10).) “If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794, subd. (d).)

The party seeking fees and costs

bears the burden to show “the fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount.” (Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104.) To satisfy this burden, evidence and descriptions of billable tasks must be presented in sufficient detail, enabling the court to evaluate whether the case was overstaffed, the time attorneys spent on specific claims, and the reasonableness of the hours expended. (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 486-487.)

“A trial court assessing attorney

fees begins with a touchstone or lodestar figure, based on the ‘careful compilation of the time spent and reasonable hourly compensation of each attorney... involved in the presentation of the case.” (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.) “The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. [Citation.] The court may also consider whether the amount requested is based upon unnecessary or duplicative work. [Citation.]” (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448.)

“The courts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom [citation], and this includes the determination of the hourly rate that will be used in the lodestar calculus. [Citation.]” (569 E. Cnty.

Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 436-437.)

A verified fee bill is prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.)

PRELIMINARY ISSUES

Plaintiff's

Reply misquotes from Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459 (Lunada Biomedical). Specifically, Plaintiff's Reply reads, "enabl[e] the court to evaluate whether the case was overstaffed". (Reply, 3:12-14.) The quotation actually reads, "allow the court to consider whether the case was overstaffed..." (Lunada Biomedical, supra, 230 Cal.App.4th at p. 486, bold added.) Plaintiff's Reply similarly misquotes Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240 (Mikhaeilpoor) by replacing the word "anything" with the word "nothing." (Reply, 4:21-22; Mikhaeilpoor, supra, 48 Cal.App.5th at p. 253.) The Court admonishes Plaintiff to accurately quote cases going forward.

Plaintiff's

Reply also misattributes the quote "reasonably spent . . . litigating the action to a successful conclusion" to Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, but no such language is found in that case. (Reply, 10:26-27.) The Court will discuss this further with Plaintiff's counsel at the hearing on this Motion.

Defendant's

Opposition also omits key language when quoting from Missouri v. Jenkins by Agyei (1989) 491 U.S. 274 (Missouri). Specifically, Defendant's Opposition reads, "purely clerical or secretarial tasks should not be billed...regardless of who performs them." (Opp., 5:2-3.) The relevant language from Missouri actually reads, "purely clerical or secretarial tasks should not be billed at a paralegal rate, regardless of who performs them." (Missouri, supra, 491 U.S. at p. 288, fn. 10, bold added.) Defendant's omission of that key language makes the quotation sound broader than it actually is. The Court will discuss this further with Defendant's counsel at the hearing on this Motion.

DISCUSSION

Summary of Arguments

Plaintiff

seeks \$18,451.09 in attorney fees and costs, comprising \$17,821.50 in attorney fees and \$629.59 in costs, as the prevailing buyer under Civil Code section 1794, subdivision (d), following her acceptance of Defendant's Code of Civil Procedure section 998 offer for a full repurchase of her 2023 Cadillac Escalade ESV, which designated her the prevailing party for purposes of a fee motion. Plaintiff contends the lodestar of 37.1 hours expended plus 2.8 reasonably anticipated hours across three timekeepers at rates of \$495, \$450, and \$350 per hour is reasonable, seeks no multiplier, and argues her verified, itemized billing records constitute prima facie evidence that the time was reasonably and necessarily incurred. Plaintiff argues the rates have been repeatedly approved by California courts, including in this district, and that the requested fees need not be proportionate to the recovery. Plaintiff characterizes the matter as a serious case involving a catastrophic engine defect and multiple recalls that required genuine, case-specific work, including review of Defendant's 98 document production and seventeen recorded pre-suit calls. Plaintiff further argues the claimed costs are recoverable as a matter of right under Code of Civil Procedure sections 1032 and 1033.5.

In

opposition, Defendant argues the requested fees are excessive and disproportionate to a straightforward case that was filed, negotiated, and settled in roughly five and a half months without expert involvement, vehicle inspections, discovery disputes, dispositive motions, or trial preparation. Defendant contends a line-by-line review shows that a substantial portion of the billed time was not reasonably or actually incurred, and it identifies specific categories for reduction, such as excessive pre-litigation and intake time, templated pleadings, review of Defendant's standard answer, initial disclosures and correspondence, deposition-related tasks, redundant client communications, administrative and clerical work, and vehicle-surrender coordination. Defendant argues that clerical and "cost of doing business" tasks are not compensable and that Plaintiff's counsel's heavy reliance on templates shows the professed hours were not performed. Defendant also objects to the 2.8 anticipated hours as speculative and untethered to "actual time expended," and to a \$74.09 "Other"

cost item as undocumented and non-statutory. Defendant requests that the Court award no more than \$6,024.00, or alternatively reduce the fee award by at least \$12,353.00.

In

reply, Plaintiff argues that Defendant concedes she prevailed and does not challenge any of counsel's hourly rates, and that Defendant offers only attorney argument rather than evidence to rebut her prima facie verified billing. Plaintiff contends Defendant fails to carry its burden to identify specific objectionable entries with supporting evidence and withholds the most direct comparator, namely what Defendant's own six defense attorneys billed on the identical case. Plaintiff argues Defendant misstates the record by calling the matter minimal while faulting counsel for work Defendant itself generated, including the deposition Defendant noticed and cancelled the day before and the person-most-knowledgeable deposition Defendant refused to produce. Plaintiff maintains that pre-filing investigation, pleading, disclosure and production review, deposition preparation, client communications, and the vehicle surrender were all compensable legal work, not clerical tasks, and that Assembly Bill 1755 changed the litigation timeline but not the workload or the fee entitlement. Plaintiff further argues the anticipated time is modest and largely already incurred. Plaintiff finally contends that Defendant's cost objection fails because Defendant filed no motion to tax and that the \$74.09 reflects itemized filing-and-service charges.

Analysis

Prevailing

Parties

There is no dispute that Plaintiff is the prevailing party and therefore entitled to recover attorney fees and costs. The parties' settlement agreement provides that such fees and costs may be determined by way of a noticed motion. (Geoulla Decl., Ex. 1, ¶ 5; Civ. Code, § 1794, subd. (d).) Defendant's Opposition also tacitly concedes Plaintiff is the prevailing party. (See generally; Opp.; see also D.I. Chadbourne, Inc. v. Superior Court (1964) 60 Cal.2d 723, 728, fn. 4 [where nonmoving party fails to oppose a ground for a motion, "it is assumed that [nonmoving party] concedes" that ground].)

Hourly Rates

The Court finds Plaintiff's counsel's hourly rates generally appropriate for the East Judicial District. "The courts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom [citation], and this includes the determination of the hourly rate that will be used in the lodestar calculus. [Citation.]" (569 E. Cnty. Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 436-437.) This determination considers the complexity of the case, the quality of services provided, and the attorneys' experience. An award at the rates requested comes with the expectation that the attorneys work in an efficient manner that reflects the elevated premium paid for their services. The Court considers this factor in addressing the reasonableness of the hours expended.

Hours Expended

Plaintiff also provided a verified fee bill, which is prima facie evidence that Plaintiff's fees and costs listed therein were necessarily incurred. (Geoulla Decl., Ex. 2; Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) Defendant therefore bears the burden of challenging the specific portions of the fee bill it contends are improper or unreasonable. (Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn. (2008) 163 Cal.App.4th 550, 564 [burden is on challenging party to point to

specific items challenged with sufficient argument and citations to the evidence, and failure to raise specific challenges in the trial court forfeits the claim on appeal].)

The Court finds Plaintiff's claimed fees generally excessive. This action has only been pending for approximately seven months and contains no motion practice other than for this Motion. Moreover, there was nothing particularly complex or unique about this case. The issues involved were applicable to other consumers' vehicles, thereby triggering economies of scale in terms of Plaintiff's counsel's efficiency in litigating this type of lemon law case. Litigating this matter "should not have required anything more than [a] slight factual modification to [an] existing boilerplate." (See Mikhaeilpoor, supra, 48 Cal.App.5th at p. 250.) The Court further notes that Bryan Geoulla is a partner but performed the

majority of the work for this action. (Motion, 8:3.) Delegating the bulk of the work to the associate would have been a more cost effective way to keep fees down.

In light of the foregoing discussion and in view of the totality of the circumstances, the Court finds that the total amount of reasonable attorney fees in this case, using a lodestar methodology, is as follows:

1. Ryan A.

Youabian = 3.0 hours multiplied by the hourly rate of \$495.00, for a subtotal of \$1,485.00;

2. Bryan Geoulla

= 23.0 hours multiplied by the hourly rate of \$450.00, for a subtotal of \$10,350.00; and

3. Michael

Josephson = 3.0 hours multiplied by the hourly rate of \$350.00, for a subtotal of \$1,050.00

4. Total

Attorney Fees = \$12,885.00

The Court finds this to be the reasonable amount billed for all tasks in this matter, including the hours incurred in connection with this Motion.

Costs and
Expenses

The Court finds Plaintiff's claimed costs in the amount of \$629.59 reasonable and supported by the evidence. (See Memorandum of Costs (7/24/26); Geoulla Decl., Ex. 4.) The Court will therefore award Plaintiff \$629.59 in costs.

CONCLUSION

The Court GRANTS Plaintiff's Motion for Attorney Fees, Costs and Expenses in the amount of \$13,514.59, comprised of \$12,885.00 in attorney fees

and \$629.59 in costs.

Plaintiff is ordered to give notice
of the Court's ruling within five calendar days of this order.